

		scope of the mental examination of Plaintiff, and the completion of expert discovery before the 9/29/26 IDC. Any disagreements on the discovery schedule dates should be addressed and resolved at the IDC. The parties are ordered to file a joint stipulated discovery schedule with the court for this court's signature and approval by 10/9/26. Plaintiff to give notice.
7	Dong vs. Bivens	<u>Motion for Trial Preference</u> The court DENIES Defendant KATHLEEN BIVENS's motion for trial preference. Code of Civil Procedure section 36(a) permits a party who is over 70 years of age to petition the court for trial preference, which the court must grant if it makes both of the following findings: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. The statute does not require "death or incapacity." (<i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, 534 [finding trial preference appropriate where the 81-year-old plaintiff was suffering from stage 4 lung cancer, severe coronary artery disease, anemia, and other medical conditions and undergoing chemotherapy that cost significant physical and cognitive effects].) "Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's 'health ... is such that a preference is necessary to prevent prejudicing [the plaintiff's] interest in the litigation.'" (Italics added.)" (<i>Ibid.</i>) Section 36 "was enacted for the purpose of assuring that an aged or terminally ill plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted." (<i>Looney v. Superior Court</i> (1993) 16 Cal.App.4th 521, 532.)